



OFFICE OF THE POLICE COMMISSIONER
ONE POLICE PLAZA • ROOM 1400

January 4, 2013

Memorandum for: Deputy Commissioner, Trials

Re: **Police Officer Jerry Ortiz**
Tax Registry No. 937227
70 Precinct
Disciplinary Case No. 2010 0825

CHAN

The above named member of the service appeared before Assistant Deputy Commissioner Claudia Daniels-DePeyster on February 10, 2012 and was charged with the following:

DISCIPLINARY CASE NO. 2010-0825

1. Said Police Officer Jerry Ortiz, while assigned to the 70th Precinct, on or about November 1, 2009, while on-duty, did wrongfully engage in conduct prejudicial to the good order, efficiency or discipline of the Department, to wit: said Officer wrongfully issued a summons for Penal Law Section 240.35 (7), when he had reason to know that such subdivision had been deemed unconstitutional.

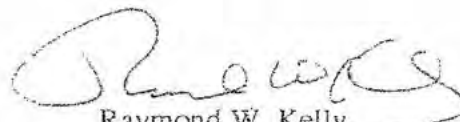
P.G. 203-10, Page 1, Paragraph 5

**PUBLIC CONTACT/PROHIBITED
CONDUCT**

2. Said Police Officer Jerry Ortiz, while assigned as indicated in Specification #1, on or about November 1, 2009, while on-duty, did fail to make an authorized entry in his Department issued memo-book regarding the issuance of the above cited summons.

P.G. 212-08, Page 1, Paragraph 5 (c) **ACTIVITY LOGS**

In a Memorandum dated September 11, 2012, Assistant Deputy Commissioner Claudia Daniels-DePeyster found Police Officer Ortiz Guilty of Specification Nos. 1 and 2 in Disciplinary Case No. 2010-0825. Having read the Memorandum and analyzed the facts of this matter, I approve the findings, but disapprove the penalty. Police Officer Ortiz shall forfeit five (5) vacation days as a disciplinary penalty.


Raymond W. Kelly
Police Commissioner



POLICE DEPARTMENT

September 11, 2012

MEMORANDUM FOR: Police Commissioner

Re: Police Officer Jerry Ortiz
Tax Registry No. 937227
70 Precinct
Disciplinary Case No. 2010-0825

The above-named member of the Department appeared before me on February 10, 2012, charged with the following:

1. Said Police Officer Jerry Ortiz, while assigned to the 70th Precinct, on or about November 1, 2009, while on-duty, did wrongfully engage in conduct prejudicial to the good order, efficiency or discipline of the Department, to wit: said Officer wrongfully issued a summons for Penal Law Section 240.35 (7), when he had reason to know that such subdivision had been deemed unconstitutional.

P.G. 203-10, Page 1, Paragraph 5 PUBLIC CONTACT/PROHIBITED
CONDUCT

2. Said Police Officer Jerry Ortiz, while assigned as indicated in Specification #1, on or about November 1, 2009, while on-duty, did fail to make an authorized entry in his Department issued memo-book regarding the issuance of the above cited summons.

P.G. 212-08, Page 1, Paragraph (c) 5 – ACTIVITY LOGS

The Department was represented by Mark Berger, Esq., Department Advocate's Office, and Respondent was represented by Craig Hayes, Esq.

Respondent, through his counsel, entered a plea of Not Guilty to Specification No. 1 and Pleaded Guilty to Specification No. 2. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review.

DECISION

Respondent is found Guilty of Specification No. 1. Respondent having Pleaded Guilty to Specification No. 2 is found Guilty of Specification No. 2.

SUMMARY OF EVIDENCE PRESENTED

The Department's Case

The Department called Detective Nicholas Rizzuti as its sole witness.

Detective Nicholas Rizzuti

Rizzuti, a ten-year member of the Department currently assigned to the Chief of Internal Affairs, began investigating Respondent on November 2, 2009. Rizzuti received a COMPSTAT order, "C" summons, from the Chief of Department's Office, which stated that a summons was issued on November 1, 2009 by Respondent that cited an unconstitutional section of the Penal Law. Respondent had written a summons in violation of New York State Penal Law 240.35 subsection 7, sleeping on a transportation facility. This summons was issued to Person A in front of [REDACTED] a dwelling. This subsection, among others, had been previously deemed unconstitutional by a federal court. [Department's Exhibit 2 (DX2) is summons number [REDACTED] and the relevant criminal court information.]

Rizzuti testified to the steps taken to prevent enforcement of 240.35 subsection 7. The Department had sent out numerous FINEST messages from the Deputy Commissioner of Legal Matters stating that it is unconstitutional. In addition, they had training sergeants go to the Police Academy regarding this issue, so that they could train

all the members of their command of the fact that Penal Law Section 240.35, subsections 1, 3 and 7, was deemed unconstitutional by the Federal Magistrate Judge and summonses were not to be issued for these violations. Stickers were also affixed to each individual packet of summonses, reminding officers of the unconstitutional subsections.

Additionally, Internal Affairs members had gone out to each command, retrieved the Penal Law from the command library, and crossed out subsections 1, 3, and 7 in the presence of the training sergeant and integrity control officer (ICO), who both then had to initial that it was crossed out of the Penal Law. In the instant case, Respondent had attended a training session within his command in March 2009 and had signed a training log that indicated that he received notice of the unconstitutionality of the relevant subsections. [Department's Exhibit 1 (DX1) is the training log dated March 5, 2009 from Respondent's command.]

Respondent was the subject of an official Department interview on January 7, 2010, conducted by Rizzuti. Respondent offered two explanations in his defense. First, he had mistakenly written the wrong penal code; he had intended to cite Penal Law section 240.35 subsection 5, which pertains to a violation for loitering on school grounds. However, Respondent indicated to Rizzuti that he did not know the subject matter of subsection 5. Respondent's second explanation was that he had intended to charge Person A with loitering in a drug prone location. Respondent did not confer with a supervisor to determine whether or not Person A was breaking any law and additionally did not determine whether Person A was intoxicated or homeless. Rizzuti did not believe that sleeping in front of a building was a violation of the Penal Law.

On cross examination, Rizzuti relayed that in the official Department interview, Respondent first stated that he was trying to give a summons for loitering in a drug prone location, then incorrectly cited Penal Law 240.35 as the subsection as Respondent believed the citation to be. Though Person A's actions were not consistent with loitering in a drug prone location, actually 240.36, Rizzuti conceded that Respondent could have confused provisions 240.35 and 240.36, since the provisions were similar.

Rizzuti explained that 45 to 50 other officers were investigated related to issuing unconstitutional summonses under 240.35, and that the maximum penalty for any of these officers was two vacation days. These officers were issued Command Disciplines and were not charged formally. These officers typically provided similar reasons for the unconstitutional summonses: they forgot the relevant training; their command cheat sheets were inaccurate; they meant to cite another provision. Rizzuti conceded that in one instance, one officer had been trained six times in six months. Rizzuti noted that in his interview, Respondent freely admitted that he knew the subsection was unconstitutional and volunteered that he meant to cite Person A for other violations.

Respondent's Case

Respondent testified in his own behalf.

Respondent

Respondent, a seven year member of the Department currently assigned to the 70 Precinct, was on patrol with his partner [REDACTED] on the night of November 1, 2009. Respondent passed the location in his patrol car and observed

Person A lying across the entrance with closed alcoholic beverages at his side.

Respondent and his partner inquired as to Person A's condition and reasons for being at the location, and Respondent ran a warrant check on Person A. Respondent decided to issue Person A a summons for loitering around a drug prone location. Respondent did not have a cheat sheet on him, and did not retrieve it from his vehicle because of the vehicle's distance from the scene and concern for his partner's safety if left alone.

Respondent, working off of memory, cited Penal Law 240.35, subsection 7. Respondent conceded that this is the incorrect subsection for the violation he was citing, and said it was a mistake.

On cross-examination, Respondent asserted that he had been trained on the unconstitutionality and unenforceability of Penal Law section 240.35 subsection 7 on March 5, 2009, prior to the incident with Person A. Respondent admitted that he meant to write a citation for section 240.35 subsection 5, but that subsection pertains to loitering on school grounds and not loitering around a drug prone location, as Respondent had thought. Respondent conceded that he did not recall at the time of his interview what section 240.35 subsection 5 pertained to. Respondent acknowledged that he understood at testimony that Person A's actions did not amount to a violation for loitering in a drug prone location, as such violation requires more than one party present, and further conceded that he still cited the wrong subsection.

Respondent reiterated that he stopped to inquire with Person A because, from his view inside the RMP, he thought Person A was loitering in a drug prone location and Person A may have had an open alcoholic container at his side. Respondent conceded that upon inquiry that the container was closed and he did not cite Person A for the container.

Respondent rejected the assertion that he issued a summons to Person A to increase his number of summonses for the month.

Upon questioning by the Court, Respondent stated that when he drove past Person A in the RMP, Respondent thought he observed Person A drinking and hanging around a location that Respondent understood to be a drug prone location. Respondent relayed that his summons book did not have a sticker on it alerting Respondent to the unconstitutional subsections. Respondent stated that he had never written any of the unconstitutional loitering summonses in his time at the 70 Precinct. Respondent additionally stated that he did not find Person A to be intoxicated and, regarding the unconstitutionality of the relevant subsections, he did not see any Department messages or receive additional academy training on the matter.

FINDINGS AND ANALYSIS

This case involves a summons issued by Respondent to Person A who was observed lying across the entrance [REDACTED] in Brooklyn on the night of November 1, 2009. Person A had a closed container with an alcoholic beverage at his side.

The facts are not in dispute. Respondent issued the summons for a violation of section 240.35 subdivision 7 of the Penal Law, a statute that had been declared unconstitutional by the courts. The Department took steps both in training and in other ways to alert officers to the fact that this statute was unconstitutional. Respondent acknowledges knowing that the statute was unconstitutional. He said that he put down the wrong subsection in that he meant to put down a violation of Penal Law Section

240.35 subdivision 5 which he believed to be loitering in a drug prone location.

Subdivision 5 in fact does not deal with drug prone locations but deals with loitering on school grounds.

Respondent acknowledged that he did not have his "cheat sheet" with him and citing the distance back to the patrol car and the fact that he did not want to leave his partner alone out of safety concerns, he worked from memory.

Specification No. 1 charges Respondent having "wrongfully issued a summons for Penal Law Section 240.35 (7), when he had reason to know that such subdivision had been deemed unconstitutional." Whatever the reason, this certainly did occur and therefore Respondent is found Guilty.

PENALTY

In order to determine an appropriate penalty, Respondent's service record was examined. See Matter of Pell v. Board of Education, 34 N.Y.2d 222 (1974).

Respondent was appointed to the Department on January 10, 2005. Information from his personnel folder that was considered in making this penalty recommendation is contained in the attached confidential memorandum.

Respondent admitted that he did not make memo book entries regarding the issuance of this summons and he has been found Guilty of Specification No. 2 as a result of that plea. He has also been found Guilty of improperly issuing a summons citing to a section of the Penal Law that had been declared unconstitutional.

Certainly the Department was concerned about this case because despite vigorous efforts to ensure that the law was complied with, a summons was issued for a statute that

had been declared unconstitutional. Respondent's defense is that he knew the statute was unconstitutional but used the subdivision in error thinking it was something else. The something else he thought it was, was also the wrong, but not unconstitutional, subdivision.

Respondent was obviously careless in the issuance of this summons and a penalty is merited. Issuing a summons is in fact issuing court papers. They require the recipient to appear in court and can result in the imposition of a penalty including jail. An appropriate level of care is required. Respondent did not exercise the level of care required. In fact, Respondent meant to cite another section of the Penal Law, which also was the wrong section. Respondent would likely benefit from retraining on the issue.

Evidence adduced at trial established that 45 to 50 other officers in the Department were investigated for issuing similar unconstitutional summonses and the maximum penalty, [even for one officer who had received training on the issue six times in six months] was a Command Discipline and the forfeiture of two vacation days. Considering penalties issued in other similar cases and also considering Respondent's good record with the Department, a Command Discipline seems appropriate, yet the Court is without authority to recommend a Command Discipline in this matter, particularly since Respondent pleaded Guilty to one of the Charges.

Accordingly, based on case precedence, it is recommended that Respondent forfeit two vacation days in this matter.

Respectfully submitted,



Claudia Daniels DePeyster
Claudia Daniels-DePeyster
Assistant Deputy Commissioner – Trials

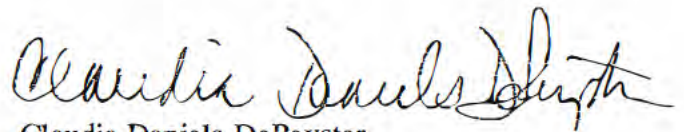
POLICE DEPARTMENT
CITY OF NEW YORK

From: Assistant Deputy Commissioner Trials
To: Police Commissioner
Subject: CONFIDENTIAL MEMORANDUM
POLICE OFFICER JERRY ORTIZ
TAX REGISTRY NO. 937227
DISCIPLINARY CASE NO. 825/10

In his last three annual evaluations, Respondent received an overall rating of 4.0 "Highly Competent" in 2011, a 3.5 "Competent/Highly Competent" in 2010, and a 4.0 "Highly Competent" in 2009. He has been awarded nine medals for Excellent Police Duty, and two medals for Meritorious Police Duty. [REDACTED]
[REDACTED]. Respondent was placed on Level 2 Force Monitoring from 2007 to 2009.

Respondent received Charges and Specifications in 2007 for using excessive force [striking an individual repeatedly with a closed fist] but was found Not Guilty.

For your consideration.



Claudia Daniels-DePeyster
Assistant Deputy Commissioner – Trials